

That party of the second part, being desirous of entering into the service of party of the first part, in the military capacity of a Captain in the Heavy Artillery, ~~and~~ ⁱⁿ accordance with the covenants, promises, and agrees as follows, to and with party of the first part.

2. ² That party of the second part during such term of service, expressly waives all claim of protection usually afforded to Americans by Consular and Diplomatic Agents of the United States, and expressly and honorably obligates himself to be subject in all things to the orders of party of the first part; - and to make, wage, and vigorously prosecute war against any and all the enemies of party of the first part, wheresoever they may be, and to that end, will implicitly follow and enforce all orders made or promulgated by His Excellency the Minister of War, or other proper department of government of party of the first part.

3. ^o — That party of the second part, will not under any event, be governed, controlled by, or submit to any order, law, mandate, or proclamation made or issued by the Government

of the United States of America, forbidding party of the second part to serve party of the first part, or make, wage, or carry on war according to any of the provisions herein contained. It being however distinctly understood, that nothing herein contained, shall be construed as obligating party of the second part to bear arms, or wage war against the United States of America.

Party of the first part hereby accepts the services of party of the second part as a Captain in the Heavy Artillery & Coast defences upon the conditions and for the term before mentioned, and hereby covenants to and with party of the second part as follows:

- 1.^d That in case of the serious illness of party of the second part at any time, caused by the climate, said party may at his option, resign his office and the service of party of the first part, and return to the United States, and shall receive his expenses of the journey, and two months pay as a gratuity and advance.
- 2.^d That party of the first part reserves the right of honorably discharging party of the second part, at any time from further service; in which event, party of the first part will advance to party of the second part, six months of his salary, and his expenses of journey to the United States in satisfaction of this contract.
- 3.^d Should party of the first part require party of the second part, to wage war, or perform duty in any of the Provinces of Egypt or elsewhere, implicit obedience is hereby pledged by party of the second part:—and party of the first part obligates himself, in case such service is in any of the Provinces, to pay unto party of the second part, during such provincial service, one fifth of his regular pay in addition to



his regular salary; together with all expenses of every nature attending such enterprise, transportation, and voyage.

4.^o That party of the first part will furnish party of the second part with rations, and pay him for his services the same salary or compensation now paid to Captains in the Heavy Artillery & Coast Defences — in the army of the United States: and in addition thereto, will furnish him quarters suitable to his rank in the army.

5.^o In case of leave of absence granted to party of the second part, party of the first part will pay unto him during such period, the one half of his salary.

6.^o In case of the death of party of the second part whilst in the actual service of party of the first part, occasioned by any of the natural causes of death, his heirs shall receive as indemnity, an entire year's salary or pay: — if party of the second part, is killed on the field of battle, or dies in consequence of a wound or wounds received on the field, his heirs shall receive, and party of the first part will pay to said heirs, a pension equal to the one half of the pay the deceased was entitled to receive at the time of his death as follows:

1.^o To the widow if any, until her re-marriage or death.

2.^o To the children or wards if no widow survives, or if one survives and re-marries, or at her death, — males until their majority, and girls until their marriage, to be divided equally among them.

It is distinctly understood and agreed, that all legal questions, and disputes of every nature which may arise between party of the second part and citizens or natives of Egypt, shall be adjudicated and disposed of by the tribunals of justice in Egypt, and that the Government of the United States, and its Consul or Consular Agents, shall

not be allowed in any manner to interfere with the same.

Should any difficulties or questions arise as between party of the second part and citizens of other countries than Egypt, the same may be adjudicated in the usual manner by the Consul or tribunals of the country of the defendant.

In Witness Whereof, the parties hereto, have respectively set their hands and seals, the day and year first above written.

In the presence of }
James M. Beattie }
John R. Nelson }

Thaddeus P. Mott
J. Henry R. Mott
Atty.



United States of America,
State of New York,
City and County of New York. } S. S.

I, James M. Morgan —

the person named in and who executed the foregoing agreement, do sincerely and solemnly swear and declare in the presence of the ever living God, that I will in all things, honestly, faithfully, and truly keep, observe, and perform each and every of the obligations and promises above enumerated, according to their spirit and letter, and that I will in all other respects discharge the duties connected with the office of a Captain in the Heavy Artillery and Coast Defences —

to the utmost of my ability, and endeavor to conform to the wishes and desires of the Government of His Royal Highness the Khedive of Egypt, in all things

connected with the furtherance of his prosperity and the
maintenance of his Throne.

I accept the commutation of one
Months ~~full~~ pay per annum in
lieu of quarters
Signed in presence of } I M Morgan
W W Loring. — }

Dated April 20th 1870.

*The Government of His Roy-
al Highness the Khedive
of Egypt*

With

James M. Morgan.

Agreement.